TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 6, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Wood, Aaron Butner, Elliott Barrow, Megan Stevens, Julian Hopkins.
Absent: Stephen Duke.
Staff: Chris Swalhah, Michael Robertson, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Wood moved for approval of the agenda. Mr. Hopkins seconded the motion. All in favor.

B. Approval of Minutes

Ms. Stevens moved for approval of the minutes. Mr. Butner seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or additional correspondence, Mr. Wolff continued with the agenda.

E. Explanation of Procedures

Mr. Wolff reviewed the procedures with the public.

F. Administration of Oath

Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-48-2021, 720 South Shelmore Boulevard, TMS#514-00-00-271. Request relief from §156.326(C)(2)(e)(1) to allow nonresidential uses on**

the same floor as residential uses. The ordinance requires no dwelling unit is to be located on the street level, or any level that has nonresidential uses. ***(deferred from October meeting)***

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Gianna Lundgren reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for denial based on the findings that there are no extraordinary conditions as there are other properties with similar uses; the conditions are the same for all the properties in the vicinity; denial would not unreasonably restrict the use of the property; and no evidence presented that there would not be detriment to the adjacent properties. Mr. Butner seconded the motion. All in favor.*

2. **Case V-50-21, 114 Sea Dog Circle, TMS# 535-07-00-079. Request relief from the strict application of §156.007 definition of building line to allow a 10-foot encroachment into the front yard setback.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Kirk Wood reviewed the request with the Board.

- Mr. Bill Huey, 122 Sea Dog Circle, stated that several neighbors asked that he speak for them regarding this request. He stated that when reviewing the plans, he noted to the owner that a variance would probably be needed and would be difficult to obtain as it might not meet the four hardship criteria.

- Mr. Wolff administered the oath to Ms. Elizabeth Huey. Ms. Huey, 122 Sea Dog Circle, agreed with Mr. Huey that the request did not meet the criteria for a variance to be granted. She stated that that she is opposed to the request.

- Mr. Wolff administered the oath to Mr. Joe Rice. Mr. Rice, 676 Old Salt Run, stated that the homes were designed to allow for space between the houses. He suggested that the home design is too large for the lot. He suggested that there is no basis for a variance. He stated that the conditions of the lot were

known at the time the lot was purchased. He stated that he is opposed to the request.

Mr. Wood rebutted that the same buffer is located for several of the lots abutting Mathis Ferry Road. He suggested that the criteria for a variance has been met. He stated that he was not aware of any of the neighbors being opposed to the request.

- There being no further comments, Mr. Wolff closed public comment.

- *Ms. Stevens moved for denial based on the findings that denial would not unreasonably restrict the use of the property and if approved, the request would be a detriment to the neighborhood. Mr. Hopkins seconded the motion. All in favor.*

3. **Case V-51-21, 929 Whipple Road, TMS# 559-00-00-095. Request relief from §156.102(A)(1) to allow 70-foot-tall lighting poles for the Lucy Beckham Baseball Field.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Margie Longshore, architect, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Ms. Stevens moved for approval based on the findings that the current poles are non-conforming, and the request would reduce the number of light poles which would be a benefit for surrounding properties. Mr. Butner seconded the motion. All in favor.*

4. **Case V-52-21, 292 North Hobcaw Drive, TMS# 514-03-00-020. Request relief from the strict application of §156.303(C)[Table] to allow an 8-foot encroachment into the front yard setback.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jon Whitbeck reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for denial based on the findings and the applicant's own omission that the denial would not unreasonably restrict the use of the property. Mr. Barrow seconded the motion. All in favor.*

5. **Case V-53-21, 1047 Wharf Indigo, TMS# 517-04-00-333. Request relief from the strict application of §156.303(C)[Table] and 156.107 (A)(2) to bring the existing encroachments into the front and side yard setbacks into compliance.**

This item was withdrawn by staff.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:17 pm.

Submitted by,
L. Lynes
BOZA12062021